

IN THE HIGH COURT OF SOUTH AFRICA
[GAUTENG DIVISION, PRETORIA / INSERT APPROPRIATE DIVISION]

CASE NUMBER: _____

In the matter between:

APPLICANT

and

FIRST RESPONDENT

SECOND RESPONDENT

THIRD RESPONDENT

NOTICE OF MOTION

KINDLY TAKE NOTICE THAT:

1. Application is hereby made for an order in the following terms:

1.1 That the debt review order granted by this Honourable Court under case number
_____ on _____ [date] be and is hereby rescinded and/or set aside;

1.2 That the Applicant's name be removed from the credit bureau records as being under debt review;

1.3 That the National Credit Regulator be directed to update its records to reflect that the Applicant is no longer under debt review;

1.4 That the credit providers listed as Respondents be directed to:

1.4.1 Remove the debt review status from the Applicant's credit profile within 7 (seven) days of this order;

1.4.2 Update all credit bureau records accordingly;

1.4.3 Provide written confirmation of compliance to the Applicant within 14 (fourteen) days;

1.5 That costs of this application be costs in the cause / be paid by the Respondent(s);

1.6 That the Applicant be granted such further and/or alternative relief as this Honourable Court may deem fit.

2. FURTHER TAKE NOTICE THAT the Applicant's affidavit and the annexures thereto will be used in support of this application.

3. FURTHER TAKE NOTICE THAT in the event that any of the Respondents intend to oppose this application, they are required to deliver a notice of intention to oppose within 10 (ten) days of service of this Notice of Motion, and thereafter to deliver an Answering Affidavit within 15 (fifteen) days of delivery of such notice.

4. FURTHER TAKE NOTICE THAT if any Respondent fails to deliver a notice of intention to oppose or an Answering Affidavit within the time periods mentioned above, the application will be set down for hearing on the unopposed roll.

5. FURTHER TAKE NOTICE THAT the Applicant has appointed the following address as their address for service of all documents in this matter:

ADDRESS: _____

FAX NUMBER: _____

EMAIL ADDRESS: _____

ATTORNEY: _____
(Name and surname)

REF: _____

DATED AT _____ ON THIS _____ DAY OF _____ 20____

APPLICANT'S ATTORNEY

[Name of Attorney]

[Address]

[Tel:]

[Email:]

TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT

AND TO: [FIRST RESPONDENT NAME]

[Address]

AND TO: [SECOND RESPONDENT NAME]

[Address]

AND TO: [THIRD RESPONDENT NAME]

[Address]

AND TO: THE NATIONAL CREDIT REGULATOR

127 15th Road

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